

of administration the debts should long since have been discharged, an executor is applied to by his co-executor to join in a transfer of stock for the purpose of payment of debts, and the executor does inquire, and ascertains there are such debts, but afterwards it turns out that the co-executor had in his hands a fund sufficient for the payment of the debts, in such a case the executor who joins in the receipt is liable to the imputation of negligence for not having acquainted himself how the co-executor had dealt with the assets [*273] during the *preceding period, and is liable for the application of the money he enables the co-executor to receive (a).

14. **Executor must not leave the money in the hands of the co-executor.**—And the executor will be answerable if he *leave* the money, as for two years, in the hands of the co-executor, when by the terms of the trust it ought to have been invested on proper securities (b). But an executor will not be called upon to replace so much of the fund as it can be proved the co-executor *bonâ fide* expended towards the purposes of the trust (c).

15. **Liability of executor for not getting in money owing from a co-executor.**—And the executor will be equally answerable, whether the money left in the hands of the defaulting co-executor consists of a debt due from him to the testator, or of property received by him after the testator's death. Thus, in *Styles v. Guy* (d), a testator appointed three executors, all of whom approved the will; but one of them, viz., Guy, was the acting co-executor. Guy, at the death of the testator, had large assets in his hands, with which he eventually absconded. The two co-executors were held responsible for

(a) *Shipbrook v. Hinchinbrook*, 11 Ves. 254, *per* Lord Eldon; *Bick v. Motley*, 2 M. & K. 312.

(b) *Scurfield v. Howes*, 3 B. C. C. 91; *Styles v. Guy*, 1 Mac. & G. 422; 1 Hall & Tw. 523; *Egbert v. Butter*, 21 Beav. 560; *Williams v. Higgins*, W. N. 1868, p. 49; and see *Lincoln v. Wright*, 4 Beav. 427.

(c) *Shipbrook v. Hinchinbrook*, 11 Ves. 252; S. C. 16 Ves. 477; Wil-

liams *v. Nixon*, 2 Beav. 472; *Kilbee v. Sneyd*, 2 Moll. 213, *per* Sir A. Hart; *Underwood v. Stevens*, 1 Mer. 712; and see *Brice v. Stokes*, 11 Ves. 328; *Hewett v. Foster*, 6 Beav. 259.

(d) 1 Mac. & G. 422; 1 Hall & Tw. 523; *Egbert v. Butter*, 21 Beav. 560; and see *Scully v. Delany*, 2 Ir. Eq. Rep. 165; *Candler v. Tillett*, 22 Beav. 257.